

and communication, the appellant knew not only that oral proceedings would take place but also that the condition it had itself placed on its own request for oral proceedings had been fulfilled, since the communication clearly indicated that the board's provisional opinion was that the decision under appeal would not be set aside. However, the appellant neither replied to the communication nor indicated at all, let alone as soon as it knew, that it would not attend oral proceedings. Since the respondent had, in the absence of any submissions from the appellant additional to those in the grounds of appeal, nothing to add to its own case in its reply to the grounds of appeal, the **oral proceedings proved to be unnecessary**. In those circumstances, an apportionment of costs in favour of the respondent was held to be appropriate under Art. 16(1)(c) RPBA 2007 as well as under Art. 16(1)(e) RPBA 2007. See also T 212/07, T 2179/09, T 258/13.

In T 301/12, in reply to the board's communication, the appellant had announced in writing that it would "probably not be represented at the oral proceedings", while explicitly upholding its request for oral proceedings, and without providing further arguments on the substance. The board held that this submission had been unclear and left the respondent in the dark as to the appellant's true intentions. Therefore, the respondent had to properly prepare for the case on the basis that the appellant would be attending the oral proceedings. The appellant's failure to clearly state its intentions on its attendance at the oral proceedings was a culpable failure in its duties.

In T 2350/15 the appellant (opponent) informed the board that it would not be attending the hearing, but that this did not mean that it was withdrawing its appeal or its request for oral proceedings. The board considered that since it had intended to maintain the patent according to the main request of the patent proprietor, the oral proceedings (in the absence of the opponent) served no purpose and could have been cancelled, had it not been for the opponent's request. Indeed, the patent proprietor was not adversely affected by the decision to maintain the patent on the basis of its main request, and would thus not have needed any oral proceedings to defend its case. By maintaining its request for oral proceedings, the opponent thus not only obliged the board to hold them but also obliged the patent proprietor to come to the oral proceedings and to prepare for them. The board found it equitable that the appellant bore the costs (for preparation, travel and presence) for the oral proceedings before the board.

b) Refusal of a request for apportionment of costs

The non-appearance of a party generally does not adversely affect the party which did attend. As a rule, a different apportionment of costs will not be ordered if the parties which are affected have neither shown nor claimed that they incurred additional costs because the other party was not present (T 544/94, T 632/88 and T 507/89).

In T 591/88 both parties had requested that oral proceedings be held – both in fact filing an "**unconditional**" request. Without giving any advance notice, the respondents failed to appear. The appellants requested apportionment of costs on the grounds that the oral proceedings would not have been necessary had they known that the respondents would not be attending. The board rejected a different apportionment of costs because the

appellants had made an "unconditional" request for oral proceedings, i.e. also covering the eventuality that the other party would not appear.

In T.91/99 the board stated that, where an appellant failed to give notice that he would not be attending the oral proceedings until **two working days** before the date set for the proceedings, this could constitute negligent or wilful conduct; however, in the case at issue, there was no culpable conduct on the part of the appellant which could justify an apportionment of costs under Art. 104(1) EPC 1973. See also T.876/16 for a case in which the party announced its non-attendance **one month** before the oral proceedings and a different apportionment was not ordered.

In T.383/13 the respondent (opponent) asked the board to order a different apportionment of costs under Art. 104(1) EPC, having attended oral proceedings for which the appellant had announced its absence by letter dated just two days beforehand. The board held that if a party was late in deciding not to attend oral proceedings or in informing the board or other party of that decision, awarding costs against it may well be justified – if those costs were directly caused by not letting them know in time. In exercising that discretionary power, the board should apply the standard laid down in T.1079/07. In the case in point, the oral proceedings were not superfluous: the board would not have cancelled them even if informed of the appellant's absence well in advance, because it wanted to be able to decide the case at the oral proceedings and close it on that date. That the board's provisional opinion had been in the respondent's favour was immaterial. Any diligent professional representative had a duty to attend oral proceedings even if the provisional opinion was in his favour and the other party did not come. The board concluded that it was not appropriate in the present case to order a different apportionment of costs under Art. 104(1) EPC.

In T.2377/13 the board decided that it was the standard laid down in T.383/13 and T.1079/07, not that used in T.937/04, which it had to apply in exercising its discretion as to whether to order a different apportionment of costs. In the case in hand, the board would certainly not have cancelled the oral proceedings, even if informed well in advance of the appellant's absence, because it had wanted to be able to decide on and close the case on the date scheduled for them, and so they had definitely not been superfluous.

In T.1699/15 the appellant (patent proprietor) gave notice that it would not attend the oral proceedings only at a late stage: the day before them, at 2 p.m. The board decided not to apportion costs differently, in particular because there was no objective evidence to suggest deliberately ambiguous or abusive conduct. The parties had been summoned to the oral proceedings not only because of the auxiliary request of the respondent (opponent) but also in view of the need to discuss, among other matters, the question of a technical prejudice, as indicated in the board's preliminary opinion. In the absence of any further information from the board to say that the oral proceedings might be cancelled following the appellant's notice of absence, the respondent had had no guarantee that the decision would be in its favour and so had had to prepare to defend its case.

According to the board in T.1079/07, to inform the EPO and any other party to the proceedings about the intention not to attend oral proceedings in due time is a matter of

courtesy and respect rather than a procedural obligation to be met (see also T. 69/07). In order to judge a late announcement of an intended absence from oral proceedings as constituting a "culpable action of an irresponsible or even malicious nature" (see T. 937/04), strong supporting evidence for such an allegation would be required.

In T. 1441/06 the respondents had not requested oral proceedings. They had not reacted to the board's communication, nor had they apparently had the intention to come or to notify the EPO of their intended absence at all. It was the appellant who had requested oral proceedings, albeit conditionally. In addition, the oral proceedings were not only arranged at the request of the appellants, but also because the board itself wished to be in a position to give a decision on the case. The oral proceedings would therefore not have been cancelled by the board even if the respondents had at an early time indicated that they would not attend. In these circumstances the board saw no sufficient reason to depart from the ordinary rule that each party bears its own costs.

In T. 65/05 the respondent maintained that, like the appellant, it would not have attended the oral proceedings if it had been informed in time that the opposing party would not be appearing. In the case in point the board considered it doubtful that the oral proceedings could therefore have been waived or that the respondent would then at any rate not have attended them or would have withdrawn its request for oral proceedings. Both parties had submitted auxiliary requests for oral proceedings. The board had issued the summons without an opinion on the merits, in particular without any announcement or intimation that it was likely to decide in the respondent's favour. Therefore the respondent could not rely on a favourable decision purely on the basis of its written submissions if it stayed away from the oral proceedings. In these specific circumstances the board deemed it likely that that respondent (patent proprietor) would have appeared at the oral proceedings to defend its interests even if it had known that the opposing party would not be there. The request for a different apportionment of costs was therefore rejected (see also T. 190/06 and T. 1361/09).

In T. 435/02 both the appellant and the respondent had filed an **auxiliary request** for oral proceedings. When filing its request, the respondent had wanted to attend the oral proceedings to ensure that the board would not overturn the decision under appeal without its having the opportunity to present its case orally. In response to the appellant's decision not to attend the proceedings, the respondent gave notice that it too would not be attending and commented that it had wished to attend "merely to rebut statements/arguments made by the patentee during these proceedings". Although the board expressly informed the parties that the oral proceedings would be held as planned, the respondent failed to attend. The respondent requested a different apportionment of costs because the appellant had withdrawn its request for oral proceedings so late that the respondent had incurred costs which no longer could be recovered. The board refused the request on the grounds that, contrary to the respondent's claim, its failure to appear was not a response to the appellant's decision not to attend but the result of a choice not to take the opportunity which it had requested to present its case orally.

In T. 1071/06 the appellant had announced that it would not be attending the oral proceedings about a month after receiving the board's opinion with the summons. For the

board, the time taken was entirely reasonable because appellants had to be afforded an opportunity to review their **appeal's prospects of success** in the light of the opinion accompanying the summons (among other things) before deciding how then to proceed.

In T.275/89 (OJ 1992, 126) the appellant's representative filed a request that the oral proceedings scheduled for 3 May be adjourned, on the grounds that the appellant was unable to attend the oral proceedings owing to **illness**. The request was submitted so late, i.e. in the afternoon of 30 April, that it was **impossible** in view of the public holiday the following day **to notify the respondents in time**: they had already set out during the afternoon of 1 May. The request for adjournment was refused however and the oral proceedings took place without the appellant. The respondents requested a different apportionment of costs on the grounds that they would not have attended either had they known that the appellant would not be appearing. The board, however, took the view that the appellant could not be made responsible for the fact that the respondents had chosen to make an early start to the journey. Furthermore, the only matter of importance was whether the appellant's absence rendered the oral proceedings unnecessary. This question had to be answered in the negative. The request for costs was therefore rejected. The same decision was reached in T.1856/10, where a **medically certified, sudden and unexpected illness** of the appellant's representative had made him unable to attend. Here it was deemed acceptable that the board and the other party had not been informed of the first signs of his illness on the morning of the day before the oral proceedings, but only on the afternoon of that day, after he had seen a doctor.

In T.849/95 the respondent submitted a request for apportionment of costs, as the appellant had not informed the EPO in good time that he would not be taking part in the oral proceedings which he too had requested. The board rejected the request, as the oral proceedings were arranged not only at the request of both parties, but also because the board itself required further airing of facts on the part of the respondent. The oral proceedings would not have been cancelled even if the appellant had informed the EPO in good time.

In T.838/92 the appellants stayed away from the oral proceedings. The respondents requested a different apportionment of costs as they had appeared with **seven witnesses**. The board rejected the request because the witnesses had been summoned at the respondents' instigation in order to prove the prior uses alleged by the latter. There was therefore no reason to impose the costs on the appellant (cf. also T.273/07).

In T.1389/13 both appellants had requested oral proceedings. Therefore, oral proceedings were scheduled and the board summoned the parties. The board considered that even if appellant II's declaration that it would not attend oral proceedings amounted to a withdrawal of its request for oral proceedings, appellant I's request for oral proceedings remained pending, meaning that the oral proceedings had to be held. Therefore, appellant II's perceived misconduct in that it should have notified its intention not to attend the oral proceedings earlier than it did, was not the cause of appellant I attending the oral proceedings. Accordingly, the board held that appellant II's conduct was not disadvantageous for appellant I.

In **T. 938/14** both parties to the appeal proceedings had requested oral proceedings in case the board was not inclined to concur with their respective positions. From the board's communication it was clear that oral proceedings had to take place, as the appellant's request to maintain the patent based on its main request could not be granted. Even if the appellant's representative could have informed the respondent's representative, as a matter of professional courtesy, that it would not attend oral proceedings, the other party could have made an attempt to ask for clarification. Thus, the board could not see any culpable actions of an irresponsible or even malicious nature in appellant's letter that would justify an apportionment of costs incurred by the respondent in attending the oral proceedings.

2.2.2 Request for scheduling or postponement of oral proceedings; withdrawal of request for oral proceedings

Nothing in the EPC prevents a party from **withdrawing a request for oral proceedings** at any stage of the procedure. The withdrawal of such a request is not culpable conduct as such and cannot be a factor in assessing whether reasons of equity exist in accordance with Art. 104(1) EPC 1973 (T. 91/99).

On the basis of Art. 116(1) EPC 1973 any party has the exclusive right to request oral proceedings if it considers them to be necessary. The fact that one of the parties has to travel a longer distance than the other does not make the request for oral proceedings abusive. Furthermore, an objection of abuse based on the fact that the problems to be discussed in oral proceedings are simple ones and could easily be presented in writing cannot be sustained (**T. 79/88**).

In **T. 297/91** it had, for a number of reasons, not been possible to decide all the issues during the first oral proceedings, with the result that the respondent (patent proprietor) had requested that oral proceedings be held for the second time and that the costs incurred be borne by the appellant. The board rejected the request for apportionment of costs because the **further oral proceedings had become necessary** for reasons beyond the patent proprietor's control.

In **T. 432/92** **postponement** of the oral proceedings was requested two days prior to the agreed date as the father of the respondents' representative had died on the previous day. The appellants requested a different apportionment of costs because their representative had already travelled from America to the EPO, thereby incurring unnecessary costs. They argued that the respondents could have been represented by someone else from their patent attorney's firm. The board refused the request because there had been no recognisably wrongful or irresponsible conduct on the part of the other party. The board was of the opinion in particular that the respondents could not be expected to be represented by a different patent attorney, who would have had to prepare two oral proceedings in one day (one for an ongoing parallel case) and to travel as well.

In **T. 154/90** (OJ 1993, 505) the opponents had initially insisted on oral proceedings, although the opposition division did not consider that they were necessary. However, **eight days** before the arranged date the opponents informed the opposition division that they